

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

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AARON SUMMERLIN,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY  
POLICE DEPARTMENT, NEW YORK CITY  
POLICE SERGEANT TODD SHEA, OFFICER  
KRISTAL DIAZ, SERGEANT BENJAMIN EILL,  
AND DETECTIVE ABIGAIL SOTO,

Defendants.  
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**SUMMONS**

Index No.: \_\_\_\_\_

Plaintiff designates  
Queens County  
as the place of trial

The basis of venue is based on  
CPLR § 504(3)

To the above named Defendants:

**YOU ARE HEREBY SUMMONED** to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York  
July 27, 2022

**/s/ Jessica Gorman**

Jessica Gorman, Esq.  
LEBEDIN KOFMAN, LLP  
*Attorneys for Plaintiff*  
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## Defendants' Addresses:

CITY OF NEW YORK, 100 CHURCH STREET, NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT, 1 POLICE PLAZA, NEW YORK, NY 10038

POLICE OFFICER SERGEANT TODD SHEA, POLICE SERVICE AREA 9, 155-09 JEWEL AVENUE, FLUSHING, NY 11367

POLICE OFFICER KRISTAL DIAZ, POLICE SERVICE AREA 9, 155-09 JEWEL AVENUE, FLUSHING, NY 11367

DETECTIVE ABIGAIL SOTO, 107<sup>TH</sup> PRECINCT, 71-01 PARSONS BOULEVARD, FRESH MEADOWS, NY 11365

SERGEANT BENJAMIN EILL, 107<sup>TH</sup> PRECINCT, 71-01 PARSONS BOULEVARD, FRESH MEADOWS, NY 11365

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**VERIFIED COMPLAINT**

**JURY TRIAL  
DEMANDED**

Index No.: \_\_\_\_\_

AARON SUMMERLIN, by his attorneys, LEBEDIN KOFMAN LLP, complaining  
against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,  
NEW YORK CITY POLICE SERGEANT TODD SHEA, OFFICER KRISTAL DIAZ,  
SERGEANT BENJAMIN EILL, AND DETECTIVE ABIGAIL SOTO, upon information and  
belief, alleges as follows:

**INTRODUCTION**

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of his rights under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments of the United States Constitution.

2. The allegations are based on the personal observations and/or experiences of the Plaintiff, and on information and belief, the sources thereof are documents prepared in connection with the incident and public documents and information relating thereto which are presently available to Plaintiff.

**TIMELINESS AND NOTICE OF CLAIM**

3. Plaintiff filed a Notice of Claim in accordance with General Municipal Law Section 50-e and 50-I on or about October 7, 2021. The Notice of Claim set forth the name and address of Plaintiff and his attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

4. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.

5. The claims in this action are being timely commenced from when they accrued and with any applicable consideration of the toll by Governor Cuomo and filing suspension by Hon. Marks.

6. Plaintiff has complied with all conditions precedent to maintain this action.

7. All state causes of action pleaded herein fall within one or more of the exceptions set forth in New York Civil Practice Law & Rules Section 1602 with respect to joint and several liability.

**PARTIES**

8. At all relevant times, Plaintiff resided in Kings County and at Riker's Island in Bronx County, City and State of New York. He currently resides in Queens County.

9. At all relevant times, Defendant CITY OF NEW YORK was a municipal corporation incorporated and existing under the laws of the State of New York, which operated, controlled, and managed Defendant NYPD.

10. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT was and is an agency of Defendant City, and directly supervised the individually named Defendants.

11. Upon information and belief, at all relevant times, Defendant SERGEANT TODD SHEA was a Sergeant with the New York City Police Department, believed to be working out of Police Service Area 9.

12. Upon information and belief, at all relevant times, Defendant OFFICER KRISTAL DIAZ was a Police Officer with the New York City Police Department, believed to be working out of Police Service Area 9.

13. Upon information and belief, at all relevant times, Defendant SERGEANT BENJAMIN EILL was a Sergeant with the New York City Police Department, believed to be working out of the 107<sup>th</sup> Precinct.

14. Upon information and belief, at all relevant times, Defendant DETECTIVE ABIGAIL SOTO was a Detective with the New York City Police Department, believed to be working out of the 107<sup>th</sup> Precinct.

15. At all relevant times, the individual Defendants acted in the scope of their authority as public servants for the City of New York and the New York City Police Department.

16. At all relevant times, the Defendants acted under color of law, to wit, under the color of the Constitution, statutes, laws, rules, regulations, ordinances, charters, customs, policies, and usages of the City of New York and the State of New York.

### **FACTS**

17. At about 11:00 am on February 17, 2021, the Plaintiff, Aaron Summerlin, was unlawfully arrested at the 107<sup>th</sup> Precinct in Queens, New York.

18. Mr. Summerlin voluntarily turned himself in after learning that his ex and mother of his child, and her husband, claimed that he threatened the husband by phone on January 20, 2021.

19. He was charged with two counts of aggravated harassment, misdemeanors; and one count of harassment, a violation.

20. Upon information and belief, Defendant police officer Kristal Diaz investigated the case and reported it; and Defendant Sergeant Todd Shea approved and signed off on her report.

21. Upon information and belief, Defendant Detective Abigail Soto also did a report, signed the criminal complaint, arrested Mr. Summerlin, and caused him to be prosecuted. Defendant Sergeant Benjamin Eill approved and signed off on her report and the arrest and prosecution.

22. Upon information and belief, there were significant problems with the alleged victims' stories. For example, the husband claimed the threat made him fear for his life. However, he did not report it until January 26, almost a week later. There was also evidence, including recordings, that conclusively proved that Mr. Summerlin did not threaten anyone as alleged. There was also evidence that the allegations were fabricated in retaliation for Mr. Summerlin contacting ACS about the husband.

23. Despite the apparent problems with the alleged victims' stories, the evidence proving they falsified their claims, and the lack of sufficient legal cause, these Defendants nonetheless charged and arrested Mr. Summerlin and caused him to be prosecuted.

24. Mr. Summerlin was arraigned and released on the charges on February 17, 2021.

25. The charges were dismissed and terminated in his favor on July 9, 2021.

26. However, Mr. Summerlin was on parole at the time. As a result of this case and other false charges which were later dismissed (and which is the subject of his other case filed in this Court), a parole warrant was lodged and Mr. Summerlin was incarcerated at Riker's Island from March 23, 2021 until July 19, 2021, when the parole hold was lifted.

27. It was lifted when the administrative law judge found no credible evidence to sustain the charges against him, including no evidence that he threatened the ex's husband as charged.

28. By the time he was released from Riker's, Mr. Summerlin had spent 188 days incarcerated for crimes he did not commit. He got covid during his incarceration, and his anxiety, which had been under control, was exacerbated and he started having panic attacks. He also had out of pocket costs from his incarceration, including costs for commissary.

29. Mr. Summerlin also suffered the indignity of being locked up for entirely fabricated crimes, which he had nothing to do with, and for which there was no legally sufficient evidence to charge or prosecute him.

30. In the past two decades, there have been at least 35 substantiated charges against 24 different officers from the 107<sup>th</sup> Precinct, including two supervisors. The charges include abuse of authority, unlawful searches of premises, cars, and people, excessive force, refusing to provide shield numbers, refusal to provide medical treatment, unlawful seizure of property, unlawful frisks, unlawful stops, unlawful threats of arrest, unlawful threats to commit, and issuing retaliatory summonses.

31. A brief search online search also shows a lawsuit filed against Defendant Eill in 2018: Thomas v. City of New York, et al; EDNY 18-cv-03205.

32. In the past two decades, there have been about 19 substantiated charges brought against 12 different officers from PSA 9, including three supervisors. The charges include abuse of authority, unlawful stops, unlawful frisks, unlawful searches of premises, cars, and people, and excessive force.

33. Upon information and belief, Defendant Sergeant Shea also has a substantiated charge against him for abusing his authority and unlawfully entering a premises in 2019.

**CAUSES OF ACTION****FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS  
MALICIOUS PROSECUTION**

34. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

35. As set forth above, Defendants Shea, Diaz, Soto, and Eill knowingly and intentionally caused Mr. Summerlin to be prosecuted on false charges and without probable cause or legal justification.

36. The charges were dismissed and terminated in his favor on July 9, 2021.

37. Mr. Summerlin's prosecution violated his rights, and as a direct and proximate result, he has been irreparably injured.

38. Defendants NYPD and City are also responsible and liable for the acts of the individual Defendants done within the scope of their employment and under the doctrine of *respondeat superior*.

**SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS  
NEGLIGENT/INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

39. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

40. As set forth above, there was no apparent lawful basis to prosecute Mr. Summerlin. The actions of Defendants Shea, Diaz, Soto, and Eill were extreme and outrageous, exceeded the bounds tolerated by a civil society, were done with a disregard for the substantial likelihood of causing severe emotional distress to Plaintiff, caused Plaintiff to fear for his safety, and injured him by exacerbating his anxiety, and causing him to be incarcerated.



41. These acts and omissions violated Mr. Summerlin's rights, and as a direct and proximate result, he has been irreparably injured.

42. Defendants NYPD and City are responsible and liable for the acts of the individual Defendants for acts committed in the scope of their employment under the doctrine of *respondeat superior*.

**THIRD CAUSE OF ACTION AGAINST DEFENDANTS NYPD AND CITY  
NEGLIGENT HIRING/TRAINING/RETENTION/SUPERVISION**

43. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

44. As set forth above, Defendants Shea, Diaz, Soto, and Eill violated Mr. Summerlin's rights when they caused him to be prosecuted without probable cause and for crimes he did not commit.

45. Upon information and belief, the NYPD and the City knew or should have known of the propensity of these Defendants to commit injurious acts, including violating the rights of citizens like the Plaintiff.

46. The NYPD and City were negligent in failing to properly train and supervise its employees, specifically including Defendants Shea, Diaz, Soto, and Eill.

47. Defendants NYPD and the City failed to exercise reasonable care in hiring, training, retaining, and supervising these Defendants; thereby breaching their duty to the public and to Plaintiff to exercise reasonable care in hiring, training, retaining, and supervising employees.

48. Defendants NYPD and City are responsible and liable for the acts of Defendants Shea, Diaz, Soto, and Eill for acts committed in the scope of their employment under the doctrine of *respondeat superior*.

49. These acts, as set forth above, violated Mr. Summerlin's rights, and as a direct and proximate result, he has been irreparably injured.

FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS  
NEGLIGENCE/GROSS NEGLIGENCE

50. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

51. Defendants' actions and omissions in causing Mr. Summerlin's prosecution, negligent infliction of emotional distress, and negligent hiring/training/supervision/retention breached the duty of care owed to him.

52. Defendants Shea, Diaz, Soto, and Eill acted negligently and in disregard for the procedures, safeguards, and laws that exist to protect citizens by causing his prosecution without probable or sufficient legal cause. They did so by initially causing his prosecution, and allowing it to continue despite the lack of evidence.

53. These acts, as set forth above, violated Mr. Summerlin's rights, and as a direct and proximate result, he has been irreparably injured.

54. Defendants NYPD and City are responsible and liable for the acts of the individual Defendants for acts committed in the scope of their employment under the doctrine of *respondeat superior*.

**FEDERAL LAW CLAIMS****FIFTH CAUSE OF ACTION AGAINST DEFENDANTS SHEA, DIAZ, SOTO, AND EILL  
PURSUANT TO 42 U.S.C. § 1983  
FALSE ARREST**

55. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

56. As set forth above, these Defendants arrested, held, and charged Mr. Summerlin without probable cause for crimes he did not commit.

57. There was no apparent reasonable information or evidence that Mr. Summerlin committed the crimes, and no probable or sufficient legal cause to arrest and charge him.

58. This violated his constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

**SIXTH CAUSE OF ACTION AGAINST DEFENDANTS SHEA, DIAZ, SOTO, AND EILL  
PURSUANT TO 42 U.S.C. § 1983  
MALICIOUS PROSECUTION**

59. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

60. As set forth above, these Defendants knowingly and intentionally caused Mr. Summerlin to be prosecuted without probable cause and without legal justification.

61. He lived under the cloud of suspicion and suffered the indignity of incarceration until the charges were finally dismissed and he was released.

62. This prosecution violated his constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS NYPD AND CITY OF NEW  
YORK  
PURSUANT TO 42 U.S.C. § 1983  
**IMPLEMENTATION OF POLICIES THAT DIRECTLY VIOLATE CONSTITUTIONAL  
RIGHTS/FAILURE TO IMPLEMENT POLICIES AND PRACTICES TO AVOID  
VIOLATIONS OF CONSTITUTIONAL RIGHTS AND FAILURE TO  
TRAIN/SUPERVISE EMPLOYEES AND AGENTS**

63. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

64. Upon information and belief, Defendants City of New York and New York City Police Department have failed to institute and implement appropriate policies at the police department on a variety of subjects including detentions and arrests, searches and seizures, prosecution, and other areas of importance to the Constitutional rights of citizens.

65. In the alternative, and upon information and belief, the City and Police Department have instituted policies addressing these topics but through gross negligence have demonstrated deliberate indifference to citizens by failing or refusing to enforce them.

66. Upon information and belief, the City and Police Department have also failed to adequately hire, screen, and supervise police officers, and to provide adequate training regarding their duties as they relate to the Constitutional rights of citizens.

67. As set forth above, Defendants Shea, Diaz, Soto, and Eill knowingly and intentionally caused Mr. Summerlin to be arrested and charged, then prosecuted without probable cause, without legal justification, and on false charges.

68. Upon information and belief, these Defendants took these actions with the knowledge and implicit approval of their supervisors, who reviewed and signed off on the reports and charges.

69. Incidents like these are part of a larger pattern and practice in the 107<sup>th</sup> Precinct, in PSA 9, and in the NYPD as a whole. As set forth above, these precincts have histories of dozens of police officers violating citizens' rights. Not only have supervisors in the precinct participated in these violations, but upon information and belief, higher-ups in the NYPD and in the City have turned a blind eye to these violations, thereby allowing them to continue.

70. In light of this, higher-ups had to know what was happening. Higher ups either failed to more closely examine the Defendant officers' actions with regard to Mr. Summerlin or they turned a blind eye to their violations. They did this despite the fact that serious questions should have been raised.

71. They also failed to more closely supervise or monitor these officers or to provide extra training or take any other remedial or preventative steps to ensure they acted in compliance with the law.

72. The violations against Mr. Summerlin occurred in accordance with these very practices policies, and customs, through the City and the Police Department's failures to act on information indicating violations were occurring, and through its gross negligence in supervising subordinates, including the individually named Defendants here.

73. These actions and inactions violated Mr. Summerlin's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

**DEMAND FOR JURY TRIAL**

74. Plaintiff hereby demands a jury trial.

**PRAYER FOR RELIEF**

**WHEREFORE**, Plaintiff demands the following relief:

- A. judgment for compensatory damages against all Defendants individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined by a properly charged jury at the trial of this action;
- B. A judgment for punitive damages against all Defendants in an amount to be determined by a properly charged jury at the trial of this action;
- C. All attorney's fees, costs and interests;
- D. Any other relief this Court finds to be just, proper, and equitable.

Dated: Albany, New York  
July 27, 2022

**/s/ Jessica Gorman**

Jessica Gorman, Esq.  
LEBEDIN KOFMAN, LLP  
*Attorneys for Plaintiff*  
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New York, New York 10004  
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ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: New York, New York  
July 27, 2022

/s/ Jessica Gorman  
Jessica Gorman, Esq.